

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

**Present:**  
**Mr. Justice Md. Moinul Islam Chowdhury**

**CIVIL REVISION NO. 1954 OF 2012**

Md. Khorshed Anwar and others  
..... Petitioners

-Versus-

Mosammat Maksuda Khanom and others  
..... Opposite Parties

None appears  
..... For the Petitioners

Mr. Ranjan Chakravorty, Advocate  
..... For the Opposite Parties

**Heard & Judgment on 17.11.2016**

At the instance of the present defendant-appellant-petitioners, Md. Khorshed Anwar and others, this Rule has been issued calling upon the opposite parties to show cause as to why the judgment and decree dated 14.02.2012 and 19.02.2012 respectively passed by learned Joint District Judge, 2<sup>nd</sup> Court, Chandpur, in Title Appeal No. 79 of 2007 affirming the judgment and decree dated 08.08.2007 and 13.08.2007 respectively passed by learned Assistant Judge (in charge), Hazigonj, Chandpur in Title Suit No. 39 of 2004 suffers from an error of law resulting in an erroneous decision occasioning failure of justice and should not be revised or set aside.

The relevant facts for disposal of the Rule, inter alia, are that the Predecessor of the present opposite parties, Md. Abu Yousuf Miah, as the plaintiff filed the Title Suit No. 39 of 2004 for seeking decree of permanent

injunction against the present defendant-petitioners in the court of the learned Assistant Judge, Hazigonj, Chandpur.

The plaintiff case is that the land appertaining to the C.S Khatian No. 127 and 84 of Ramra Mouza under Haziganj originally belonged to one Zahiruddin Prodhania who died leaving behind eight sons and two daughters. C.S. records was prepared in the name of his sons Md. Warish Prodhania and others. Md. Warish Prodhania died leaving behind his successor including Sayed Ali Prodhania who sold 0.9 acres of land to the plaintiff by the registered sale deed No. 1923 on 27.02.1990, and possession was delivered on the same date.

The predecessor of the present opposite parties purchased land measuring 0.28 acres in Dag No. 198 and 204 in C.S Khatian No. 127. During S.A survey the name of the predecessor of the present opposite parties was published and subsequently in the name of the present opposite parties. All the plaintiff opposite parties have been in the possession of the suit land but the present defendant petitioners have been threatening to dispossess and lastly threatened on 10.08.2004 from the land, as such, the suit was filed for seeking for a permanent injunction which caused to file the Title suit.

The Suit was contested by the present petitioners as the defendants by filing a joint written statement denying all the allegations statement made in the plaint. The deferent case is that C.S. Khatian No. 127 of Ramra Mouza was original belonged to Warish Prodhania and others who were the owners of land measuring 2.5075 acres in the 2 annas share. Eventually the said Warish Prodhania became owner of total land measuring 3.2061

acres and he died leaving behind only son named Md. Syed Ali Prodhania who purchased. 0200 acres of land by the registered deed dated 09.07.1981 therefore, the said Syed Ali Prodhania owned total 3.2261 acres of land and he died leaving behind three sons and two daughters. The defendants also claimed right by way of inheritance of Md. Syed Ali Prodhania and possession of land for more than 12 years by cultivating crops. The present defendant petitioners mutated their names by the Mutation Case No. 113/1 and they denied any right of the plaintiffs upon the suit land and there was no cause of action for filling the suit.

After hearing the parties the learned Assistant Judge (In-charge) Hazigonj, Chandpur decreed the suit by his judgment and degree dated 08.08.2007. Being aggrieved the present petitioners as the plaintiffs preferred the Title Appeal No. 79 of 2007 in the court of learned District Judge, Chandpur, who dismissed the appeal by his judgment and decree dated 14.02.12. Challenging the said judgment and decree this revisional application has been filed under Section 115(1) of the Code of Civil Procedure and the Rule was issued thereupon.

This matter has been appearing in the list for a long period of time and it appears almost in the top of the list for hearing but no one appears on behalf of the petitioners to present this revisional application and the Rule.

However, from the revisional application it appears that the petitioners have taken ground that the regard to the fact that the witnesses of the plaintiffs could not prove the case of the plaintiff-opposite parties and they clearly stated that they had no knowledge about the possession and position of the suit land, actually, they did not even know the suit land,

as such, the learned appellate court should allow the appeal considering the facts and exclusive possession.

The original suit is for permanent injunction thus the exclusive possession is the main issue of the original suit but the learned trial court as well as the appellate avoided the main issue and passed the impugned judgment on the basis of another title suit No. 54 of 2000 and the title Appeal No. 143 of 2001, as such, the impugned judgment of the appellate court is liable to be set aside.

The Rule has been opposed the by opposite parties.

Mr. Ranjit Chakravorty, the learned Advocate appearing for the opposite parties submits that the suit was filed by the present opposite parties seeking for a decree for permanent injunction when they were threatened by the present defendant petitioners and lastly threatened on 10.08.2004. The learned trial court considering the documentary and oral evidence submitted in the court decreed the suit and the appeal was dismissed after examining all the relative documents in the records, therefore, both the courts below concurrently found the absolute possession of the present plaintiff opposite parties and title pursuant to the registered deed No. 1923 dated 27.02.1990, as such, the present petitioners obtained was the Rule by misleading the court, therefore, the rule is liable to be discharged.

The learned Advocate also submits that previously the present petitioner filed the Title Suit No. 54 of 2000 which was dismissed on merit and the appeal thereof was also disallowed by the concerned courts on the same property where in the present petitioners challenged the title and to

cancel the deed No. 1923 dated 27.02.1990 which is the subject matter of the present case, thus, and both the courts came to a conclusion that the said deed provided entitlement in favour of the present opposite parties. which the opposite parties as the plaintiff could prove by the deposition of P.W.-1 Maksuda Khanam, P.W.-2 Md. Badsha Alam and P.W.-3 Faruk Hossain @ Titu who have clearly stated about the validity of the said deed and the possession upon the land by the present plaintiff opposite parties.

Considering the above submissions made by the learned advocate on behalf of the present opposite parties and also considering the application filed under Section 115(1) of the Code of Civil Procedure along with the its annexures therein, it appears that the predecessor of the present opposite parties filed the Title Suit No. 39 of 2004 for seeking the decree for permanent injunction. The settled principle is that a case for permanent injunction the plaintiff has to prove the actual possession in the suit land along with the additional information as to the title upon the land.

I have carefully examined the witnesses deposition by the P.Ws and D.Ws as the plaintiff witnesses and defendant witnesses in the court as well as the relevant documents regarding the suit land. After examining the above material, I find that the plaintiff opposite parties could prove their title on the basis of the document executed by the predecessor of the defendant petitioners, Md. Syed Ali Prodhania, by the registered sale deed being No. 1923 dated 27.02.1990. I have also examined deposition and counter claim by the present defendant-petitioners who claimed themselves as the successor of the said Md. Sayed Ali Prodhania, and also claimed possession upon the suit land. In this regard, I am of the view that if the

predecessor of the present defendant-petitioners has already transferred the entitlement upon the suit land to the present opposite parties then there is no question of inheritance by the defendants. The above important matter has been proved by the P.Ws and also, in particular admitted by the D.Ws in the suit.

The learned Trial Court by his judgment concluded to decree the suit taking a decision on the basis of the following findings:

“Out of the three reliefs the court cannot restrain the defendants for executing and registration a transfer deed as the title of respective parties regarding the suit land is not conclusively determined in this suit what hold in this suit that the plaintiffs have prima-facie title and exclusive possession in the suit land and as such they are entitled to defend their possession and the court can pass order restraining the defendants from entering into the suit land and from dispossessing them (Plaintiffs).”

The learned Appellate Court affirmed the judgment and decree passed by the learned Trial Court on the basis of the following findings:

“উপরোক্ত আলোচনার প্রেক্ষিতে বিজ্ঞ নিম্ন আদালতের নথি পর্যালোচনায় প্রতীয়মান হয় যে, নালিশী ভূমি বাদী রেসপনডেন্ট পক্ষের প্রাইমারিসী স্বত্বাধিকারী ও নিরঙ্কুশ দখল প্রমানিত হয়, আপীল্যান্ড পক্ষ বিজ্ঞ নিম্ন আদালতের রায়ে ঘটনা ও আইনগত নিষ্পত্তি কোন প্রকার বিচ্যুতি ছিল মর্মে প্রমাণ করিতে ব্যর্থ হয়েছে। সুতরাং বিজ্ঞ নিম্ন আদালত প্রদত্ত রায় ও ডিক্রি যথাযথ ছিল মর্মে অত্র বিবেচ্য বিষয়ে সিদ্ধান্ত গ্রহীত হলো। সেমতে অত্র আপীল মোকদ্দমাটি প্রমানিত না হওয়ায় তা নামঞ্জুর যোগ্য।”

After considering the above two concurrent findings by the learned Trial Court as well as the learned Appellate Court, I am of the view that the courts below have not committed any error of law and find after considering the evidence in front of them, in particular, the learned appellate Court did not commit any error of law and did not misread any evidence, therefore, this Rule requires no further consideration by this court.

Therefore, I am not inclined to interfere into the impugned judgment and decree passed by the Appellate Court below, as such, this Rule does not need any further consideration.

Accordingly, I do not find any merit in the Rule

In the result, the Rule is discharged.

The office is directed to communicate the judgment and order to the court concerned immediately.